

23TRCV03125 23TRCV03125

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CM%2C08%2F05%2F2026

Source SHA-256: b776d565337752b5d108071db889b79b157ad991823e21d58f1ddab917b36c61

Case Number: 23TRCV03125 Hearing Date: August 5, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter

Wednesday,

August 5, 2026

Department M Calendar No.

PROCEEDINGS

Michael Hendrex v. Christina M. Criscione, et al.

23TRCV03125

1. Michael

Hendrex's Motion to Set Aside Default

TENTATIVE RULING

Michael Hendrex's Motion to Set Aside

Default is denied without prejudice.

Background

Plaintiff

filed the Complaint on September 21, 2023. Plaintiff filed the FAC on September 16, 2025. Plaintiff alleges the following facts. Plaintiff and Defendant entered

into a romantic relationship. Plaintiff placed funds in a stock account in Defendant's name for Plaintiff's sons with the understanding that the funds belonged to Plaintiff. After the relationship ended, Defendant refused to return the funds. The original Complaint included the following causes of action: (1) Fraud and Intentional Misrepresentation, (2) Negligent Misrepresentation, (3) Constructive Fraud, (4) Breach of Oral Contract, (5) Breach of Implied Covenant of Good Faith and Fair Dealing, (6) Unjust Enrichment, and (7) Conversion. The demurrer to the Complaint was sustained with leave to amend the first to third cause of action and was overruled as to the fourth through seventh causes of action. In the FAC, Plaintiff alleges the following causes of action: (1) Breach of Oral Contract, (2) Breach of Implied Covenant of Good Faith and Fair Dealing, (3) Unjust Enrichment, and (4) Conversion. The remaining causes of action are the ones to which the Court overruled the demurrer.

On December 18, 2025, Defendant filed a Cross-Complaint. Cross-Defendant's default was entered on February 5, 2026. Default judgment has yet to be entered.

Motion
to Set Aside Default

CCP §

473(b) states, in relevant part: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.

. . . Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence,

surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. . . ."

Code

Civ. Proc., § 473(c)(1) states:

"Whenever

the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A)

Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B)

Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C)

Grant other relief as is appropriate."

CCP §

473.5(a) states, in relevant part: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.

The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered."

CCP §

473.5(b) states: "A notice of motion to set aside a default or default judgment and for leave to defend the action shall designate as the time for making the motion a date prescribed by subdivision (b) of Section 1005, and it shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice

a copy of the answer, motion, or other pleading proposed to be filed in the action.” The phrase “actual notice” means “genuine knowledge of the party litigant” and does not include constructive or imputed notice to the client. *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.

“After

six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable. . . . One ground for equitable relief is extrinsic mistake—a term broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. Extrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended[.] When a default judgment has been obtained, equitable relief may be given only in exceptional circumstances. [W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court. Beyond this period there is a strong public policy in favor of the finality of judgments and only in exceptional circumstances should relief be granted. . . . To set aside a judgment based upon extrinsic mistake one must satisfy three elements. First, the defaulted party must demonstrate that it has a meritorious case. Second[], the party seeking to set aside the default must articulate a satisfactory excuse for not presenting a defense to the original action. Last[], the moving party must demonstrate diligence in seeking to set aside the default once ... discovered.” *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981–82 (internal citations and quotations omitted; emphasis in original).

CCP §

473(d) empowers the Court to set aside any judgment that is void as a matter of law, e.g., lack of subject matter jurisdiction; lack of personal jurisdiction; lack of proper service of the summons and complaint; or the judgment violated due process rights. See *Dhawan v. Biring* (2015) 241 Cal.App.4th 963, 973-74; See also *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; See also *Heidary v.*

Yadollahi (2002) 99 Cal.App.4th 857, 862-64. “It is well settled that a judgment or order which is void on its face, and which requires only an inspection of the judgment roll or record to show its invalidity, may be set aside on motion, at any time after its entry, by the court which rendered the judgment or made the order.” *Hiroko Kawakita Hayashi v.*

Lorenz (1954) 42 Cal.2d 848, 851. “Code of Civil Procedure section 473, subdivision (d) (hereafter section 473(d)), provides in relevant part that a court “may ... on motion of either party after notice to the other party, set

aside any void judgment or order.” Under this provision, a party may move to vacate a judgment on the ground of improper service of process.” California Capital Insurance Company v. Hoehn (2024) 17 Cal.5th 207, 212.

“Mistake

is not a ground for relief under section 473, subdivision (b), when the court finds that the ‘mistake’ is simply the result of professional incompetence, general ignorance of the law, or unjustifiable negligence in discovering the law. Further, the term surprise, as used in section 473, refers to some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against. Finally, as for inadvertence or neglect, to warrant relief under section 473 a litigant’s neglect must have been such as might have been the act of a reasonably prudent person under the same circumstances. The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief. It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied. Courts neither act as guardians for incompetent parties nor for those who are grossly careless of their own affairs. The only occasion for the application of section 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.” Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206 (internal citations and quotations omitted).

While

the title of the motion states “motion to dismiss,” in actuality, Cross-Defendant moves to set aside the entry of default pursuant to CCP §§ 473(b) and 473.5 on the grounds that the default and default judgment was entered due to Cross-Defendant’s mistake, inadvertence, surprise, or excusable neglect.

The

relevant portion of the declaration is short and can be quoted verbatim.

“I Mike

Hendrex was served with the Cross Complaint on February 11, 2026[.] I made a mistake and unaware that I had to file an answer within 30 days of service. On or about 45 days after service, I received by mail or email, the request to enter default. Mr. Kurtz did not notify me either orally or in writing of his intent to take a default. Had he done so, I would have filed an answer to the cross-complaint. I have defenses to the allegations in the cross-complaint and request that the court give me the option to fight it on the merits[.]” (Decl., Michael Hendrex, ¶¶ 2-5).

First,

as noted above, pursuant to Hearn, Cross-Defendant's “mistake” in not realizing he was required to file an Answer within 30 days does not constitute the type of mistake or excusable neglect that justifies setting aside the default. Ignorance of the law is not sufficient.

“A

defendant who has ‘no confidence in his ability to decipher legal jargon’ in a summons, or ‘if it were read by him,’ knows that he should consult a lawyer. If he neglects to do so he cannot plead ignorance of the contents of the summons.” Moreover, a motion for relief from a default judgment under section 473 ordinarily will be denied unless it appears that in arranging for his defense a party has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon an important business matter. [. . .] Thus, any alleged ignorance of legal matters or failure to properly represent himself can hardly constitute “mistake, inadvertence, surprise or excusable neglect” as those terms are used in section 473.” Goodson v. Bogerts, Inc. (1967) 252 Cal.App.2d 32, 40.

Second,

Cross-Defendant is correct “that an attorney has an ethical obligation to warn opposing counsel that the attorney is about to take an adversary's default.” Lasalle v. Vogel (2019) 36 Cal.App.5th 127, 135 (emphasis in original). However, in Lasalle, the Court also examined several other factors in eventually determining that the default should have been set aside including the fact that the email notice that was provided was dubious. Thus, simply reciting the suggestion that an attorney should warn the adversary of potentially seeking a default, on its own, does not constitute grounds to set aside the default.

Finally,

Cross-Defendant failed to attach the proposed pleading as required by CCP § 473(b).

Therefore,

Cross-Defendant's Motion to Set Aside the Default is denied without prejudice.

Cross-Complainant

is ordered to give notice of this ruling.